

Sau. Reshma W/O Sudhir Randiwe vs Sudhir S/O Daulat Randiwe on 28 January, 2019

mca56

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH AT NAGPUR

MISC. CIVIL APPLICATION NO.568/2018

APPLICANT : Sau. Reshma W/o Sudhir Randiwe
(Respondent) Aged about 27 years, Occu : Housewife,
 R/o C/o Lalsingh Pusam,
 Radhamohnasingh Thakur, Bajpai Ward,
 Gautam Nagar, Gondia, Tah. & Distt.
 Gondia - 441601.

...VERSUS...

NON-APPLICANT : Sudhir S/o Daulat Randiwe,
(Petitioner) Aged 32 years, Occu : Business,
 R/o Neharu Ward, Mendha Road,
 Bhandara, Tah. & Distt. Bhandara 441904.

Shri P.J. Pandey, Counsel for applicant
None for non-applicant, though served.

CORAM : ARUN D. UPADHYE, J.
DATE : 28/01/2019

ORAL JUDGMENT

1. Heard. Admit. None for the non-applicant, though served. Heard the learned Counsel for the applicant finally with consent.
2. The applicant has filed this misc. civil application under Section 24 of the Code of Civil Procedure for transfer of Hindu Marriage Petition No.60/2017 pending on the file of Civil Judge mca568.18.odt Senior Division, Bhandara to the Court of Civil Judge Senior Division, Gondia.
3. The learned Counsel for the applicant has submitted that the non-applicant has filed Hindu Marriage Petition No.60/2017 for dissolution of the marriage and the same is pending before the Civil Judge Senior Division, Bhandara. The distance between Gondia to Bhandara is more than 100 kilometers. The applicant has filed three proceedings before the Court at Gondia and therefore, the proceedings initiated by her husband at Bhandara be transferred to the Court of Civil Judge Senior Division, Gondia.

4. I have gone through the contents of the application as well as the documents placed on record. It appears that the marriage of the applicant was solemnized on 31/1/2015 at Gondia. The applicant is having one female child. It appears that the applicant has filed proceedings under Section 125 of the Code of Criminal Procedure bearing Criminal Maintenance Application No.185/2016 for maintenance before the Chief Judicial Magistrate, Gondia and the same is pending before the Judicial Magistrate First Class, Court No.3, Gondia. She has also filed proceedings under Section 9 of the Hindu Marriage Act, 1955 bearing Hindu Marriage Petition mca568.18.odt No.5/2017 for Restitution of Conjugal Rights and the same is pending before the Civil Judge Senior Division, Gondia. It appears that the applicant had filed Misc. Criminal Application No.22/2015 against the non-applicant under the provisions of the Protection of Women from Domestic Violence Act, 2005 and the same was decided on 30/10/2017. It appears that the appeal filed against the said judgment is pending before the District Judge, Gondia.

5. It appears that the non-applicant has filed petition under Section 13 (1) (ia) and (ib) of the Hindu Marriage Act, 1955 and the same is pending before the Civil Judge Senior Division, Bhandara.

6. Considering the above facts and circumstances of the case, I am of the view that it is inconvenient for the applicant/wife to attend the proceedings at Bhandara Court. On the contrary, the non-applicant is required to attend the three proceedings at Gondia, which are already pending at Gondia Court and therefore, there is no inconvenience for him to attend the proceedings at Gondia. The applicant has, thus, made out a case for transfer of the proceedings on the file of Civil Judge Senior Division, Bhandara to the Court of Civil Judge Senior Division, Gondia. Hence, I proceed to pass the following order.

mca568.18.odt ORDER

(i) Misc. Civil Application No.568/2018 is allowed.

(ii) Hindu Marriage Petition No.A-60/2017 (Sudhir s/o Daulat Randive...Versus...Reshma w/o Sudhir Randive) pending on the file of Civil Judge Senior Division, Bhandara stands transferred to the Court of Civil Judge Senior Division, Gondia for disposal according to law.

No order as to costs.

JUDGE Wadkar, P.S.